



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-85 / Highlands – Zoning Map Amendment
Date: June 8, 2026

Background:

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 8, 2026
- Public Services Committee June 15, 2026
- Second reading June 22, 2026
- Public Services Committee July 6, 2026
- Third and final reading July 13, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their June 1, 2026, meeting and recommended the Governing Body deny this application.

The Planning Commission Staff report is attached and unchanged.

Public Comment

As of the creation of this memo (June 3, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 127 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED EAST OF SOUTH GREELEY HIGHWAY AND SOUTH OF THE SWEETGRASS SUBDIVISION FROM AG – AGRICULTURAL AND PUD – PLANNED UNIT DEVELOPMENT TO BP – BUSINESS PARK.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of real property located east of South Greeley Highway and south of the Sweetgrass Subdivision have applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 1, 2026, the City of Cheyenne Planning Commission conducted a public hearing and reviewed the proposed zoning map amendment that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as A portion of the south half of Section 14, Township 13 North, Range 66 West; the south half of Section 13, Township 13 North, Range 66 West; the south half and a portion of the northeast quarter of Section 22, Township 13 North, Range 66 West; all of Section 23, Township 13 North, Range 66 West; all of Section 24, Township 13 North, Range 66 West; the west half of Section 26, Township 13 North, Range 66 West; and the north half, southeast quarter and a portion of the southwest quarter of Section 27, Township 13 North, Range 66 West, Cheyenne, Wyoming, are hereby changed to BP – Business Park.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



JUNE 1, 2026

FILE:	PUDC-26-85: Highlands – Zoning Map Amendment (zone change)
REQUEST:	A request to rezone approximately 3,034.7 acres of land from AG - Agricultural to BP Business Park.
LOCATION:	East of South Greeley Hwy and south of the Sweetgrass Development.
APPLICANT:	ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC
AGENT:	AVI PC
OWNER:	ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC
ZONING:	Currently LU Land use AG – Agricultural (assigned zoning with annexation) and PUD – Sweetgrass Planned Unit Development
FUTURE LAND USE:	Agricultural/Rural
PURPOSE:	To zone land BP for development.
PREPARED BY:	Connor White, Planner II



RECOMMENDED MOTION:

Should Planning Commission approve the Future Land Use Map Amendment, the following motion is recommended:

Move to recommend the Governing Body **approve** the rezoning of approximately 3,034.7 acres of land east of South Greeley Highway and south of the Sweetgrass Development to BP Business Park as shown in the attached zone change map, noting that the project meets the review criteria for approval.

Should Planning Commission not approve the Future Land Use Map Amendment, the following motion is recommended:

Move to recommend the Governing Body **deny** the rezoning of approximately 3,034.7 acres of land east of South Greeley Highway and south of the Sweetgrass Development to BP Business Park as shown in the attached zone change map, noting that the project does not meet the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from AG – Agricultural and PUD – Planned Unit Development to BP - Business Park for roughly 3,034.7 acres of land. The land is currently vacant.

The land subject to the zone change request is mostly outside of City limits with a small portion having already been annexed as part of the Sweetgrass Development. The anticipated assigned zoning (base zone) with annexation is AG - Agricultural.

The applicant has requested a change to the future land use map to change the designation from Agricultural/Rural to Mixed-use Employment. The application is PUDC-26-116.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Agricultural / Rural and Urban Residential	County LU – Land Use (City AG Agricultural upon annexation) and PUD – Sweetgrass Planned Unit Development	Vacant
North	Agricultural / Rural and Urban Residential	County LU – Land Use and City PUD	Vacant / Quarry
South	Agricultural / Rural	County LU – Land Use	Vacant / Single-family Residential
East	Agricultural / Rural	County LU – Land Use	Vacant / Oil Fields
West	Agricultural / Rural and Urban Residential / Industrial	BP – Business Park and PUD	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages opportunities for a range of industrial employment uses as well as encourages working with community partners such as LEADS. LEADS over sees much of Bison Business Park and this can be seen as an extension of the business park or its own business park based on the size.

The Future Land Use Designation for the area is Agricultural/Rural and a small portion being Urban Residential. According to the comprehensive plan the optimal City zones for the subject property's future land use designations would be AG – Agricultural for the area that's designated Agricultural/Rural and any of the residential zone districts for the area that is Urban Residential. The current future land use designations do not support the BP zone.

The applicant has requested an amendment to the future land use designation to change the entirety of the area to Mixed-use Employment. Should the future land use designation be approved it would support the BP zone as that designation would anticipate more commercial or industrial type zone districts.

The proposed zone change **complies** with review criterion 1 if the future land use map designation is approved.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The proposed BP zone can be seen as an extension of the business park that already exists to the west in this area or it can be seen as its own business park based on the size of the area being rezoned. Surrounding this parcel is either vacant land or industrial type uses. Bison Business Park is to the west, a quarry is to the northeast and oil fields are to the east. There is a small residential subdivision to the south, it is the only residential development in the area. The Sweetgrass subdivision is to the north, which is primarily a residential PUD – Planned Unit Development. The land has only developed closer to College Drive and is still primarily vacant.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The BP zone provides more flexibility for large sites in terms of landscaping. The current zone of AG is considered a holding zone for the property and should it be developed with industrial or commercial use, it would need to be rezoned.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

No changes to the street network are proposed at this time. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) do not exist in the area and will need to be extended as the area develops. Due to the size of the area and the fact it is undeveloped, infrastructure can be planned more easily.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The Business Park (BP) district is intended to support small and large-scale industrial development while providing essential commercial services along regional transportation routes in an industrial park setting. The district integrates manufacturing, processing, research and development, and shipping activities in addition to retail, dining, and convenience stores to enhance functionality and appeal for businesses and employees.

The BP district is applicable to areas on the edge of the community that are intended to support large-scale industrial, manufacturing, shipping, research and development, and data center uses. The district is typically found close to major transportation routes, making commercial uses appropriate. The district shall contain not less than 320 acres of land (interrupted only by roads, railroads, highways and natural features (such as ridges and waterways). Specifically, large-scale areas within the future land use designations in the comprehensive plan of Community Business, Mixed-Use Employment, and Industrial – including Community/Regional Activity Centers. Areas currently designated Agricultural/Rural (either inside or outside of the Urban Service Boundary) may also be appropriate for this zone district if near to regional transportation routes and if development of the area extends appropriate infrastructure.

The proposed zone could be part of an extension of Bison Business Park or it could become its own business park as it is over 320 acres. This property is also on the edge of the community.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The BP zone is a mix of the LI, HI and CB zone which allows for many different industrial and commercial uses. The BP zone will allow this property to develop with more uses than what is allowed in the AG zone. The AG zone was meant to be a holding zone for this property until it was ready for development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments received in regard to the proposed zone.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on May 16, 2026.
- **Posted Notice** Posted notice is not required until May 25, 2026.
- **Internet Posting** on connect.cheyennecity.org on April 10, 2026.

As of the publication of the Staff Report (May 22, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 97 views and no comments.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the BP zone at this location if the future land use map amendment is approved.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The BP zone is appropriate based on the proposed future land use map amendment, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

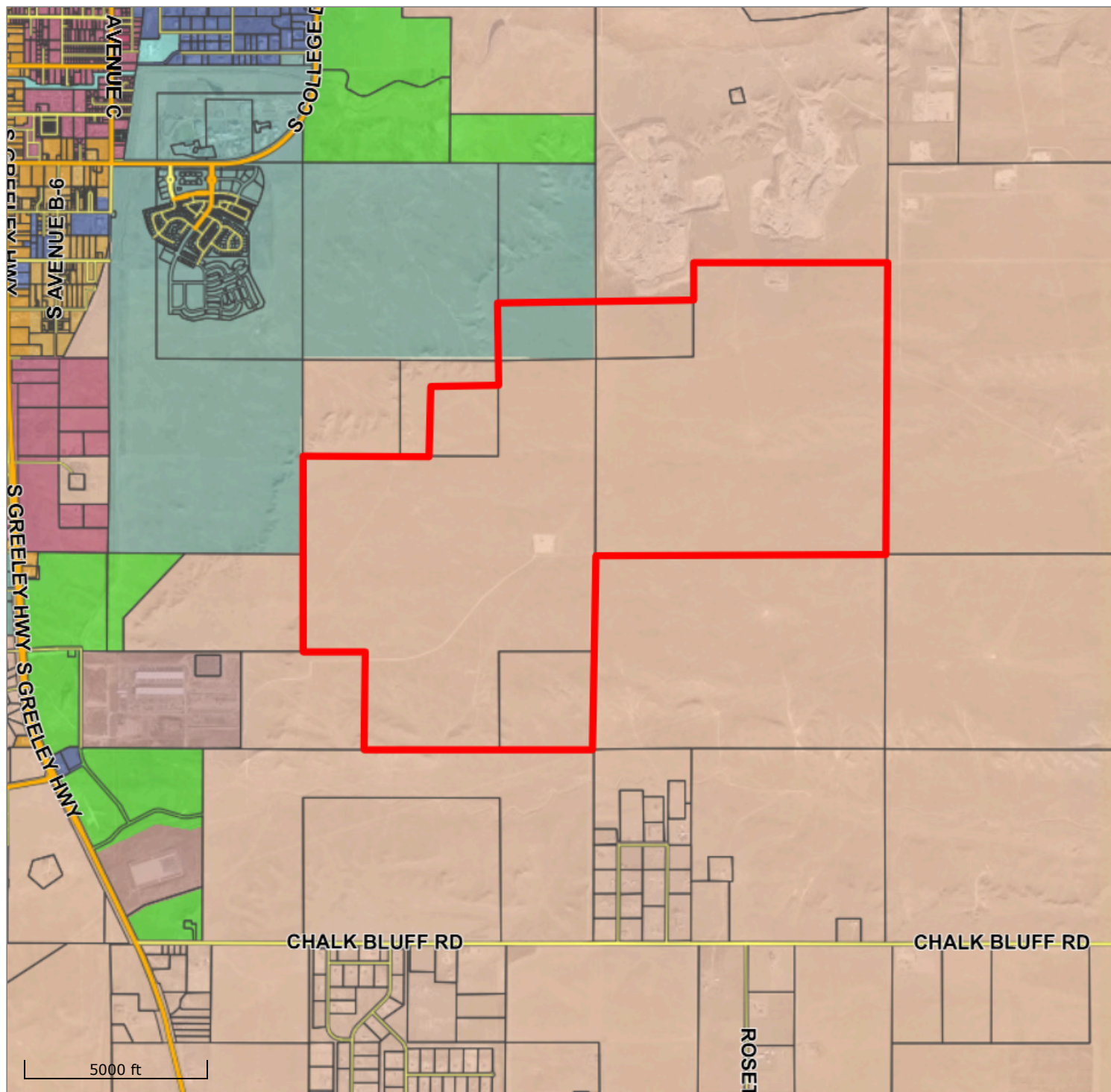
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from AG to BP.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

Laramie County Wyoming MapServer

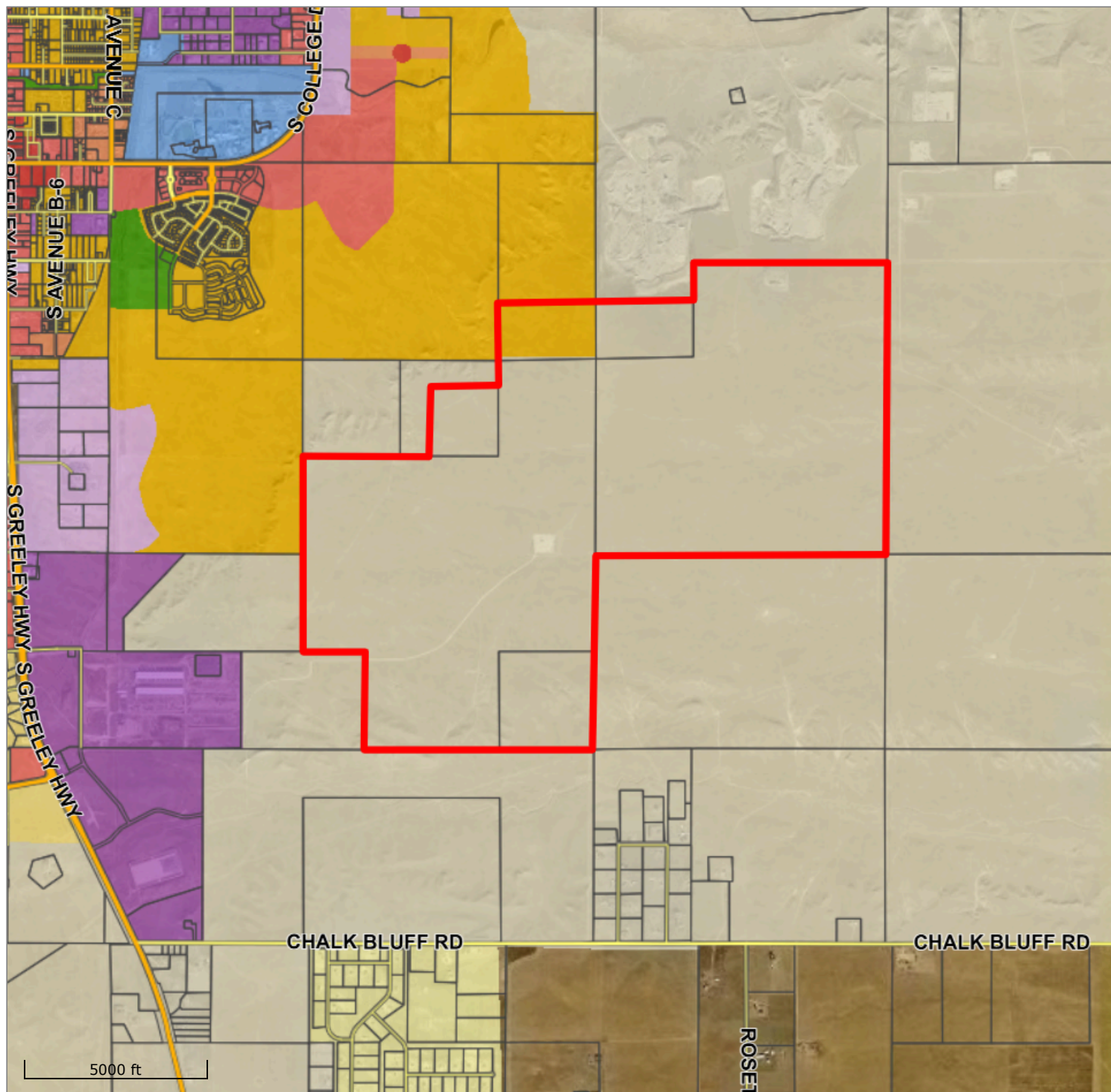


- Interstate
- Major Road
- imps only
- A-1
- A-2
- AD
- AG
- AR
- CB
- CBD
- HI
- HR
- LI
- LR
- LU
- MR
- MU
- MUB
- MUE
- MUR
- NB
- NR-2
- NR-3
- P
- PUD
- SS
- URLD
- URMD
- URHD
- X



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printed 5/22/2026

Laramie County Wyoming MapServer



- Interstate
- Major Road
- Imps only
- Agricultural/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Mixed-Use Residential
- Mixed-Use Commercial
- Mixed-Use Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks



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printed 5/22/2026

Record No: PUDC-26-85

Zoning Map Amendment

Status: Active

Submitted On: 4/8/2026

Primary Location

O E COLLEGE DR
Cheyenne, WY 82007

Owner

ARP AND HAMMOND HARDWARE CO
1825 CAMPSTOOL RD CHEYENNE, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* ?

Highland Zone Change

Proposed Zoning* ?

BP Business Park

Project Description or notes ?

Zoning to allow for future Business Park

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*

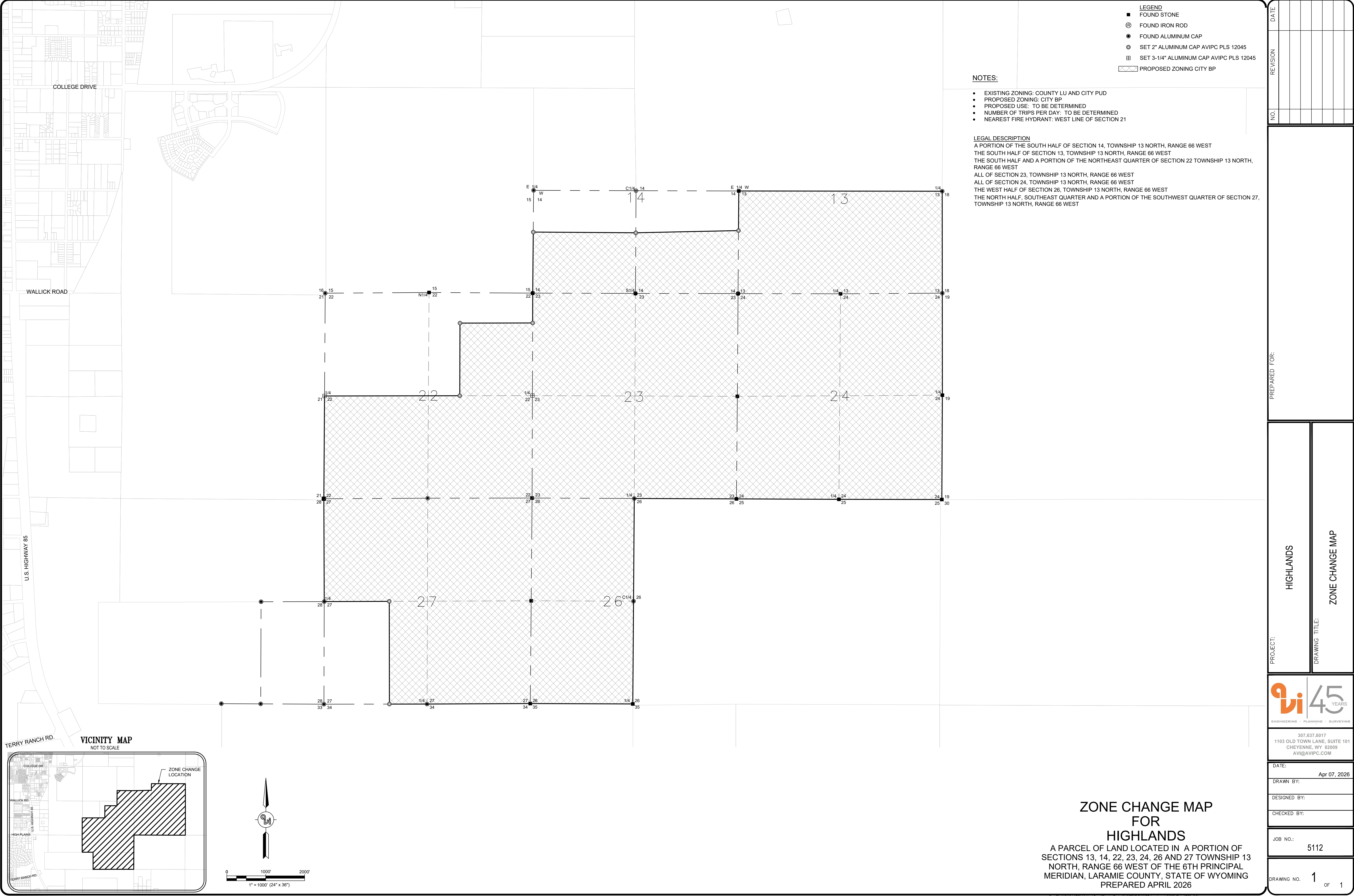


Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Brad Emmons

Apr 8, 2026



- LEGEND**
- FOUND STONE
 - ⊗ FOUND IRON ROD
 - FOUND ALUMINUM CAP
 - ⊙ SET 2" ALUMINUM CAP AVIPC PLS 12045
 - ⊞ SET 3-1/4" ALUMINUM CAP AVIPC PLS 12045
 - ⊞ PROPOSED ZONING CITY BP

NOTES:

- EXISTING ZONING: COUNTY LU AND CITY PUD
- PROPOSED ZONING: CITY BP
- PROPOSED USE: TO BE DETERMINED
- NUMBER OF TRIPS PER DAY: TO BE DETERMINED
- NEAREST FIRE HYDRANT: WEST LINE OF SECTION 21

LEGAL DESCRIPTION

A PORTION OF THE SOUTH HALF OF SECTION 14, TOWNSHIP 13 NORTH, RANGE 66 WEST
THE SOUTH HALF OF SECTION 13, TOWNSHIP 13 NORTH, RANGE 66 WEST
THE SOUTH HALF AND A PORTION OF THE NORTHEAST QUARTER OF SECTION 22 TOWNSHIP 13 NORTH, RANGE 66 WEST
ALL OF SECTION 23, TOWNSHIP 13 NORTH, RANGE 66 WEST
ALL OF SECTION 24, TOWNSHIP 13 NORTH, RANGE 66 WEST
THE WEST HALF OF SECTION 26, TOWNSHIP 13 NORTH, RANGE 66 WEST
THE NORTH HALF, SOUTHEAST QUARTER AND A PORTION OF THE SOUTHWEST QUARTER OF SECTION 27, TOWNSHIP 13 NORTH, RANGE 66 WEST

DATE					
REVISION					
NO.					

PREPARED FOR:

HIGHLANDS

ZONE CHANGE MAP

PROJECT:

DRAWING TITLE:



307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

DATE: Apr 07, 2026

DRAWN BY:

DESIGNED BY:

CHECKED BY:

JOB NO.: 5112

DRAWING NO. 1 OF 1

**ZONE CHANGE MAP
FOR
HIGHLANDS**

A PARCEL OF LAND LOCATED IN A PORTION OF
SECTIONS 13, 14, 22, 23, 24, 26 AND 27 TOWNSHIP 13
NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL
MERIDIAN, LARAMIE COUNTY, STATE OF WYOMING
PREPARED APRIL 2026